

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                    |                           |                                                                                                                                                                                                            |
|---------------------------------------------------|----------------------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Eric Murdy                       | Team:<br>Squad #06                                 | CCRB Case #:<br>201501430 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 02/25/2015 3:30 PM | Location of Incident:<br>Utica Avenue and Avenue I | 18 Mo. SOL<br>8/25/2016   | Precinct:<br>63                                                                                                                                                                                            |
| Date/Time CV Reported<br>Fri, 02/27/2015 1:45 PM  | CV Reported At:<br>CCRB                            | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 02/27/2015 1:45 PM                                                                                                                                                      |

|                           |             |                     |
|---------------------------|-------------|---------------------|
| <b>Complainant/Victim</b> | <b>Type</b> | <b>Home Address</b> |
|                           |             |                     |

|                    |                     |
|--------------------|---------------------|
| <b>Witness(es)</b> | <b>Home Address</b> |
|                    |                     |

|                           |               |              |                |
|---------------------------|---------------|--------------|----------------|
| <b>Subject Officer(s)</b> | <b>Shield</b> | <b>TaxID</b> | <b>Command</b> |
| 1. POM Salvatore Aquino   | 02958         | 948625       | 063 PCT        |

|                           |                  |               |                 |
|---------------------------|------------------|---------------|-----------------|
| <b>Witness Officer(s)</b> | <b>Shield No</b> | <b>Tax No</b> | <b>Cmd Name</b> |
| 1. SGT Michael Grimm      | 3072             | 930274        | 063 PCT         |

|                          |                                                                     |                                    |
|--------------------------|---------------------------------------------------------------------|------------------------------------|
| <b>Officer(s)</b>        | <b>Allegation</b>                                                   | <b>Investigator Recommendation</b> |
| A . POM Salvatore Aquino | Discourtesy: PO Salvatore Aquino spoke discourteously to § 87(2)(b) | A . Unsubstantiated                |

### Case Summary

On February 27, 2015, § 87(2)(b) filed this complaint with the CCRB by phone.

On February 25, 2015, § 87(2)(b) was driving his white Ford van when he was pulled over by PO Salvatore Aquino at the intersection of Utica Avenue and Avenue I in Brooklyn. PO Aquino came to § 87(2)(b)'s window and asked him for his license, registration, and insurance. As he was pulling his wallet out, § 87(2)(b) asked PO Aquino two to three times why he was being pulled over. Frustrated, PO Aquino told § 87(2)(b) "Just give me the fucking documents that I asked you for" (**Allegation A**). § 87(2)(b) handed over a PBA card and PO Aquino told him, "I don't want to fucking see this shit" (**Allegation A**) (encl. 3d). § 87(2)(b) was issued two summonses for § 87(2)(b).

### Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). On April 16, 2015, an inquiry was filed with the NYC Comptroller's Office to check if § 87(2)(b) has filed a notice of claim (encl. 8b). A response is pending and will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB History

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Aquino has been a member of the NYPD for four years and has three prior CCRB complaints against him, none of which were substantiated. § 87(2)(g)

### Officers Not Interviewed

- Sgt. Michael Grimm was PO Aquino's partner on the incident date. However, a call to the 63<sup>rd</sup> Precinct roll call on April 16, 2015 confirmed that Sgt. Grimm has been out on a line of duty injury for approximately one month and has no scheduled return date (encl. 6c). § 87(2)(g).

### Findings and Recommendations

#### **Allegation A – Discourtesy: PO Salvatore Aquino spoke discourteously to § 87(2)(b)**

§ 87(2)(b) alleged that PO Aquino told him, "Just give me the fucking documents that I asked you for." When § 87(2)(b) tried to hand over a PBA card, PO Aquino told him, "I don't want to fucking see this shit" (encl. 3d).

In his CCRB interview, PO Aquino denied using any discourtesies when he interacted with § 87(2)(b). PO Aquino added that he could not recall if his partner, Sgt. Grimm, approached the van with him that day or if he stayed behind in their car (encl. 4f). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *unsubstantiated*.

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Pod: \_\_\_\_\_

|                     |       |       |
|---------------------|-------|-------|
| Investigator: _____ | _____ | _____ |
| Signature           | Print | Date  |

|                   |       |       |
|-------------------|-------|-------|
| Supervisor: _____ | _____ | _____ |
| Title/Signature   | Print | Date  |

|                 |       |       |
|-----------------|-------|-------|
| Reviewer: _____ | _____ | _____ |
| Title/Signature | Print | Date  |

|                 |       |       |
|-----------------|-------|-------|
| Reviewer: _____ | _____ | _____ |
| Title/Signature | Print | Date  |